

CV-23-007505 SILVA, TAO vs CLARK PEST CONTROL INC - Plaintiff's Motion for Approval of PAGA Settlement - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: On August 21, 2026, Plaintiff filed a motion for approval of settlement pursuant to the Private Attorneys General Act of 2004, Labor Code, section 2698 et seq. Having reviewed the unopposed motion and the supporting declarations and exhibits thereto, the Court finds that the settlement is fair, reasonable, and adequate in view of PAGA's purposes. (Lab. Code, § 2699(s)(2); Moniz v. Adecco USA, Inc. (2021) 72 Cal.App.5th 56, 77 disapproved of on other grounds by Turrieta v. Lyft, Inc. (2024) 16 Cal.5th 664 [addressing standing to intervene].) The motion is GRANTED. As to the requested litigation costs in the amount of \$34,817.21, the Court awards a reduced amount of \$31,789.81. The reduced amount is comprised of the costs shown in Exhibit C to the Bokhour Declaration (\$21,225.17) and Exhibit 1 to the Bibiyan Declaration (\$10,591.51), less postage. Postage is not allowable as costs. (Code Civ. Proc., § 1033.5.) Good cause appearing to the satisfaction of the Court, the proposed settlement and the associated fees and costs are approved as set forth below: Gross settlement amount: \$794,291.00 PAGA Counsel Fees amount: \$264,763.66 PAGA Counsel Litigation Costs amount: \$31,789.81 Settlement Administration amount: \$11,000.00 Plaintiffs' Service Award amounts: \$5,000 each PAGA Fund amount, allocation to LWDA 75% and Aggrieved Parties (25%): \$476,737.53 Moving party is directed to submit a revised proposed order within five court days that comports with this ruling.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: c28f332b0ffaf02cfdae3b39a8a14da332a04c99babc0d2a050b519ac86b9f4b

CV-23-007505 - SILVA, TAO vs CLARK PEST CONTROL INC - Plaintiff's Motion for Approval of PAGA Settlement - GRANTED.

On August 21, 2026, Plaintiff filed a motion for approval of settlement pursuant to the Private Attorneys General Act of 2004, Labor Code, section 2698 et seq.

Having reviewed the unopposed motion and the supporting declarations and exhibits thereto, the Court finds that the settlement is fair, reasonable, and adequate in view of PAGA's purposes. (Lab. Code, § 2699(s)(2); Moniz v. Adecco USA, Inc. (2021) 72 Cal.App.5th 56, 77 disapproved of on other grounds by Turrieta v. Lyft, Inc. (2024) 16 Cal.5th 664 [addressing standing to intervene].) The motion is GRANTED.

As to the requested litigation costs in the amount of \$34,817.21, the Court awards a reduced amount of \$31,789.81. The reduced amount is comprised of the costs shown in Exhibit C to the Bokhour Declaration (\$21,225.17) and Exhibit 1 to the Bibiyan Declaration (\$10,591.51), less postage. Postage is not allowable as costs. (Code Civ. Proc., § 1033.5.)

Good cause appearing to the satisfaction of the Court, the proposed settlement and the associated fees and costs are approved as set forth below:

Gross settlement amount: \$794,291.00

PAGA Counsel Fees amount: \$264,763.66

PAGA Counsel Litigation Costs amount: \$31,789.81

Settlement Administration amount: \$11,000.00

Plaintiffs' Service Award amounts: \$5,000 each

PAGA Fund amount, allocation to LWDA 75% and Aggrieved Parties (\$25%): \$476,737.53

Moving party is directed to submit a revised proposed order within five court days that comports with this ruling.